

(*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) If an item is not expressly allowed under the statute, the burden is on the party seeking the expense to provide evidence that the fees are reasonable or necessary. (*Id.* at 132.)

Item No. 1 (Filing Fees):

Under CCP § 1033.5(a)(1), filing fees are allowable costs, which must also be reasonably necessary to the conduct of the litigation and reasonable in amount. (CCP § 1033.5(c).) Plaintiff challenges the entire amount of \$1,100.00 arguing that these costs were somehow duplicative of the costs claimed by the Individual Defendants. However, BBI points out in the Opposition that it was separately represented and its costs were separately incurred by BBI's counsel, not by the Individual Defendants. Plaintiff has no basis for its argument in that BBI was a separate defendant, which filed its own answer, jury fees, and MSJ making up the entire amount of \$1,100.00.

Item No. 11 (Court reporter fees):

CCP § 1033.5(b)(5) provides that transcripts of court proceedings not ordered by the court are not allowable as costs. (see also, *Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 58 [court reporter fees are a different expense than transcripts].) BBI's MOC contains an amount for "Court reporter fees as established by statute" in the amount of \$4,051.22. Plaintiff challenges the entire amount on the same ground as asserted above regarding filing fees. However, BBI points out that court reporter fees were split 50/50 between Plaintiff and Defendants – Defendants then split their portion 50/50. The invoices were attached. (Dec.Seifen ¶¶ 5-8, Exs. "1" – "4".) As discussed above, Plaintiff has no basis for its argument claiming that BBI's costs are duplicative of the Individual Defendants.

Item No. 14 (Electronic filing and service fees): Under CCP § 1033.5(a)(14), "[f]ees for the electronic filing or service of documents through an electronic filing service provider [are recoverable] if a court requires or orders electronic filing or service of documents." (CCP § 1033.5(a)(14).) Plaintiff challenges \$212.24 claimed by BBI for this item. Plaintiff does not dispute that electronic filing was mandated, but contends that the fees are duplicative because the Individual Defendants may have already claimed them. However, BBI asserts that it was required to electronically file and serve its papers throughout this litigation and that the costs claimed are NOT duplicative nor do they overlap with those already sought by the Individual Defendants.

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